

ALITO, J., dissenting

about puncturing misconceptions, was taken in.<sup>11</sup> Everybody thought *Apodaca* was a precedent. But, according to three of the Justices in the majority, everybody was fooled. *Apodaca*, the precedent, was a mirage. Can this be true?

No, it cannot. The idea that *Apodaca* was a phantom precedent defies belief. And it certainly disservices important objectives that *stare decisis* exists to promote, including evenhandedness, predictability, and the protection of legitimate reliance. See, e.g., *Gamble v. United States*, 587 U.S. 678, 691 (2019); *Kimble v. Marvel Entertainment, LLC*, 576 U.S. 446, 455–456 (2015); *Payne v. Tennessee*, 501 U.S. 808, 827 (1991).

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Under any reasonable understanding of the concept, *Apodaca* was a precedent, that is, “a decided case that furnishes a basis for determining later cases involving similar facts or issues.” Black’s Law Dictionary 1366 (10th ed. 2014); see also J. Salmond, *Jurisprudence* 191 (10th ed. 1947); M. Gerhardt, *The Power of Precedent* 3 (2008); Landes & Posner,

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*Louisiana*, 449 U.S. 871 (1980); *Hodges v. Louisiana*, 434 U.S. 1074 (1978). On June 7, 1972, shortly after *Apodaca* was handed down, the Court denied certiorari in a number of cases asking the Court to recognize a right to unanimity in state jury trials. *Blevins v. Oregon*, 406 U.S. 972; *Martinka v. Oregon*, 406 U.S. 973; *Andrews v. Oregon*, 406 U.S. 973; *Planck v. Oregon*, 406 U.S. 973; *Riddell v. Oregon*, 406 U.S. 973; *Mitchell v. Oregon*, 406 U.S. 973; *Atkison v. Oregon*, 406 U.S. 973; *Temple v. Oregon*, 406 U.S. 973; *Davis v. Oregon*, 406 U.S. 974; *O’Dell v. Oregon*, 406 U.S. 974; *Miller v. Oregon*, 406 U.S. 974.

Contrary to the majority opinion, I am not arguing that the denial of certiorari is precedential. See *ante*, at 105, n. 56. My point, instead, is that the Court’s pattern of denying review in cases presenting the question whether unanimity is required in state trials is evidence that this Court regarded *Apodaca* as a precedent.

<sup>11</sup> D. Rudstein, C. Erlinder, & D. Thomas, 3 *Criminal Constitutional Law* § 14.03[3] (2019); W. LaFave, J. Israel, N. King, & O. Kerr, 6 *Criminal Procedure* § 22.1(e) (2015); W. Rich, 2 *Modern Constitutional Law* § 30:27 (3d ed. 2011).